

25VECV01688 25VECV01688

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Case Number: 25VECV01688 Hearing Date: June 25, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Kevin Quintero, et
al.,

Plaintiffs,

v.

Volkswagen Group of
America, Inc.

Defendant.

Case Number Department

25VECV01688 107

COURT'S [TENTATIVE]
ORDER RE:

Motion to Enforce Compliance with
the Court's

February 27, 2026 Order

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

On

April 18, 2024, Plaintiffs Kevin Quintero and Gabriela Quintero ("Plaintiffs") purchased a 2024 Volkswagen Tiguan (the "Vehicle"). (Complaint ¶ 8.) The Vehicle was defective. (Complaint ¶ 10.)

On

March 26, 2025, Plaintiffs filed a complaint against Defendants Volkswagen Group of America, Inc. ("Defendant") and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; and (3) violation of the Song-Beverly Act section 1793.2.

On

July 11, 2025, Plaintiffs filed a motion to compel further responses to Plaintiffs' Request for Production of Documents, Set One (the "Motion to Compel Further Responses"). On February 27, 2026, the court granted the Motion to Compel Further Responses, as limited by the court's order, and directed Defendant to provide further responses within thirty days of the court's order (the "February 27 Order"). (02/27/26 Minute Order p. 10.)

On

May 18, 2026, Plaintiffs filed a motion to enforce compliance with the court's February 27, 2026 order (the "Motion"). On June 11, 2026, Defendant filed an opposition. On June 17, 2026, Plaintiffs filed a reply.

II.

LEGAL

STANDARD

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).) “The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)~~~~

Code
of Civil Procedure section 2023.010 states:

Misuses of the
discovery process include, but are not limited to, the following:

(a) Persisting,
over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery.

(b) Using a
discovery method in a manner that does not comply with its specified procedures.

(c) Employing a
discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.

(d) Failing to
respond or to submit to an authorized method of discovery.

(e) Making,
without substantial justification, an unmeritorious objection to discovery.

(f) Making an
evasive response to discovery.

(g) Disobeying a court order to provide discovery.

(h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.

(i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.

III.

DISCUSSION

The Motion, Opposition, and Reply:

Plaintiffs

move for an order compelling Defendant's compliance with the February 27 Order. (Motion p. 2.) Specifically, Plaintiffs move to compel Defendant to provide further verified responses to Plaintiffs' Request for Production of Documents, Set One ("RFPs") Nos. 7, 8, 9, 10, and 11, and to produce documents responsive to RFP No. 31. (Motion p. 2.) Plaintiffs state Defendant's counsel did not respond to Plaintiffs' counsel's meet and confer efforts. (Motion p. 7.) Plaintiffs also seek terminating and monetary sanctions against Defendant. (Motion p. 2.)

In

opposition, Defendant argues the Motion is moot because it served Plaintiffs with further supplemental responses on March 30, 2026. (Opposition pp. 5-6.) Defendant also states it provided further supplemental responses on June 11, 2026. (Opposition p. 5.) Defendant states Defendant's counsel did not respond to the meet and confer efforts because Defendant's counsel was preparing for trial, traveling to, and attending an in-person final status conference and out of the office. (Motion p. 6.) Finally, Defendant argues sanctions should be denied because it acted in good faith in complying with court's February 27

Order. (Opposition pp. 7-10.)

In

reply, Plaintiffs argue Defendant's counsel ignored Plaintiffs' counsel's meet and confer efforts, and Defendant's June 11, 2026, further response to RFP No. 31 remains non-complaint. (Reply p. 4.) Specifically, Plaintiffs argue Defendant's response "is not a clear, unequivocal statement of compliance under Code of Civil Procedure section 2031.220" and instead "Defendant qualified and limited its response by referring only to 'Repair Order and VTA' cases" which creates ambiguity. (Reply p. 5.)

Meet

and Confer:

Motions

to compel further responses must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2031.310, subd. (b)(2).)

Plaintiffs'

counsel submits a declaration stating they repeatedly called and emailed Defendant's counsel but received no response. (Hozven Declaration ¶¶ 12-14.)

Defendant's

counsel submits a declaration stating they acknowledge Plaintiffs' counsel's May 5, 2026, and May 6, 2026, meet and confer correspondence, but Defendant's counsel was preparing for trial and traveling to and attending an in-person final status conference on May 6, 2026. (Simpson-James Declaration ¶ 5.) Defendant's counsel also states:

Defendant further

acknowledges Plaintiffs' May 14, 2026 and May 18, 2026 meet and confer correspondences wherein Plaintiffs' counsel attempted to reach me by telephone for the first time. In response to Plaintiffs' emails, Plaintiffs received an automatic response stating that I was out of the office. However, despite Plaintiffs' notice that I was out of office until May 25, 2026, Plaintiffs' counsel still attempted to "reach" me while knowing I was unavailable. Immediately thereafter, Plaintiff filed the instant motion on May 18, 2026.

(Simpson-James
Declaration ¶ 6.)

It

is unclear to the court whether Defendant's counsel immediately went from preparing for trial to being out of the office for the entire period between May 6, 2026, and May 25, 2026. There is no evidence Defendant's counsel communicated with Plaintiffs' counsel until serving Plaintiffs with further supplemental responses on June 11, 2026, the same day Defendant filed its opposition. (Simpson-James Declaration ¶ 8.)

The

court finds Plaintiffs' counsel satisfied the meet and confer requirement. The court further finds Defendant's counsel fails to set forth an explanation satisfactory to this court for Defendant's counsel's failure to respond to Plaintiffs' counsel's numerous meet and confer efforts.

RFP

Nos. 7, 8, 9, 10, 11, and 31:

Plaintiffs'

reply indicates only RFP No. 31 remains at issue. (Reply pp. 4-5.) Plaintiffs argue Defendant's response is ambiguous as to whether Defendant has produced all responsive documents. (Reply pp. 4-5.)

Defendant's

response to RFP No. 31, served to Plaintiffs June 11, 2026, states:

VWGoA will comply with

this Request in whole. Production of all responsive documents in Volkswagen Group of America, Inc.'s possession, custody, or control are allowed. VWGoA has produced all responsive documents in its possession, custody, or control, Repair Order and VTA cases (Exhibit C bates number 000012-55,000063-000076).

(Simpson-James

Declaration Ex. C pdf p. 49.) Plaintiffs argue this response is ambiguous because, as for RFP Nos. 7 through 11 "Defendant expressly stated: 'VWGoA has produced all responsive documents in its possession, custody, or control.' Defendant then separately identified the documents produced." (Reply p. 5.)

The

court finds Defendant's response is sufficient. Defendant states it has

“produced all responsive documents in its possession, custody, or control . . .” (Simpson-James Declaration Ex. C pdf p. 49.) The court interprets Defendant’s subsequent references to documents as references to the documents Defendant is stating are responsive to the request.

Thus,
it is unnecessary for the court to order Defendant produce a further response to RFP No. 31.

Sanctions:

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc., (2009) 174 Cal.App.4th 967, 992.) “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” (Id.) “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction[.]’” (Id.)

Plaintiffs

request the court impose terminating and monetary sanctions. (Motion pp. 9-11.)

The

court finds Defendant’s counsel fails to offer a sufficient explanation for their failure to respond to Plaintiffs’ counsel’s meet and confer attempts. The court further finds that Defendant’s initial supplemental responses, dated March 30, 2026, did not comply with the court’s February 27 Order. For example, the February 27 Order directed Defendant to provide further responses to RFP Nos. 1 to 29 and 31 as limited by the court’s order, within thirty (30) days. (02/27/26 Minute Order p. 10.) As for RFP Nos. 1 to 14, the court found “[t]he RFPs are reasonably particularized and are not overbroad, vague, or ambiguous. They clearly seek documents relevant to this action relating to the Vehicle, Defendant’s affirmative defenses, or Plaintiffs.” (02/27/26 Minute Order p. 3.) In Defendant’s further response to RFP No. 8, dated March 30,

2026, Defendant stated:

VWGoA objects on

grounds that Plaintiff has not designated the items being sought for production by specifically describing each individual item or by reasonably particularizing each category of item (CCP § 2031.030 (c)(1)). VWGoA also objects to this request on grounds that it is overbroad and compound. VWGoA also objects on grounds that it is invasive of the trade secret privilege and seeks confidential and proprietary business information, disclosure of which could damage VWGoA's competitive position in the marketplace. VWGoA also objects to this request on grounds that it assumes facts and lacks foundation.

Subject to and without

waiving the foregoing objections, VWGoA has produced all recalls notices, technical service bulletins, and dealer advisories pertaining to any warranty repairs performed on the subject vehicle. Please see the TSBs/Recalls (Exhibit G).

(Simpson-James

Declaration Ex. A pdf pp. 12-13.)

Reasserting

the same objections the court addressed in its order and found were meritless is not complying with the court's order. It should not require a second noticed motion for Defendant to comply with its discovery obligations when there is already a court order addressing Defendant's objections and directing Defendant to provide responses.ﷲ

Defendant

has now produced responses to all the RFPs Plaintiffs argue in the Motion were non-compliant with the court's February 27 Order. Thus, the court concludes terminating sanctions are not warranted. Plaintiffs' request for monetary sanctions in the form of \$500 "for each day Defendant fails to fully comply with the Court's Orders" is likewise not warranted here because Defendant has now produced responses compliant with the February 27 Order. (Motion p. 12.)

Finally,

Plaintiffs state their counsel "has incurred recoverable costs and attorney's fees." (Motion p. 10.) Plaintiffs request no specific sum of sanctions for costs and attorneys' fees. Thus, the court will award none.

IV.

CONCLUSION

For

the foregoing reasons, Plaintiffs' request the court order Defendant to produce further supplemental responses is denied as moot. Plaintiffs' requests for terminating and monetary sanctions are also denied.

Dated: June 25, 2026

_____ Hon. Eric Harmon

Judge of the Superior Court